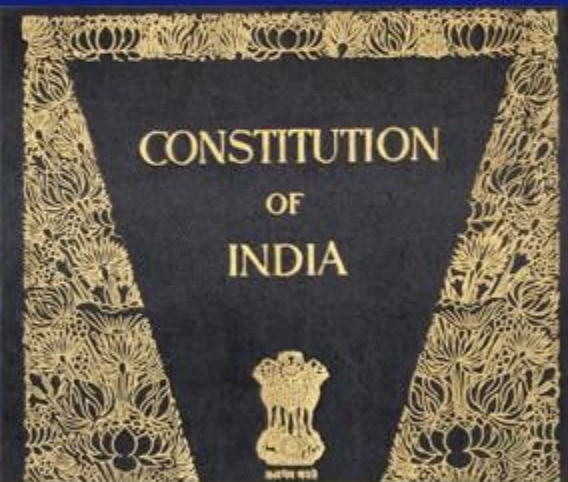


INDIAN POLITY

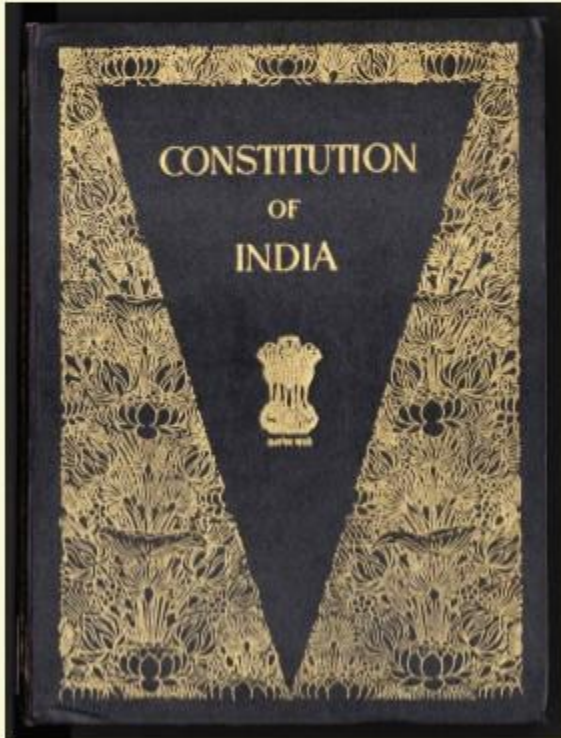


MODULE - 44

FUNDAMENTAL RIGHTS

- COELHO CASE
- RIGHT TO PROPERTY

EFFECTING CERTAIN FUNDAMENTAL RIGHTS



1 Article 35 lays down that the power to make laws, to give effect to certain specified fundamental rights shall vest only in the Parliament and not in the State Legislatures.

2 This provision ensures that there is uniformity throughout India with regard to the nature of those fundamental rights and punishment for their infringement.

EFFECTING CERTAIN FUNDAMENTAL RIGHTS PROVISIONS OF ARTICLE 35

- 1** The Parliament shall have (and the legislature of State shall not have) power to make laws with respect to the following matters
 - a** Prescribing residence as a condition for certain employments or appointments in a State or Union Territory or local authority or other authority (Article 16).
 - b** Empowering courts other than the Supreme Court and the High Courts to issue directions, orders and writs of all kinds for the enforcement of fundamental rights, etc. (Article 32).
 - c** Restricting or abrogating the application of Fundamental Rights to members of armed forces, police forces, etc. (Article 33).
 - d** Indemnifying any Government servant or any other person for any Act done during the operation of martial law in any area (Article 34).

EFFECTING CERTAIN FUNDAMENTAL RIGHTS PROVISIONS OF ARTICLE 35

2 Parliament shall have (and the legislature of a State shall not have) powers to make laws for prescribing punishment for those acts that are declared to be offences under the fundamental rights.

a These include the following

1. Untouchability (Article 17)
2. Traffic in human beings and forced labor (Article 23).

b Further, the Parliament shall, after the commencement of the Constitution, make laws for prescribing punishment for the above acts, thus making it obligatory on the part of the Parliament to enact such laws.

EFFECTING CERTAIN FUNDAMENTAL RIGHTS PROVISIONS OF ARTICLE 35



PARLIAMENT OF INDIA

3a. Any law in force at the commencement of Constitution with respect to any of the matters specified above is to continue in force **until altered or repealed or amended by the Parliament.**

3b. It should be noted that Article 35 extends the competence of the Parliament to make a law on the matters specified above, even though some of those matters may fall within the sphere of the State Legislatures (i.e State List).

PRESENT POSITION OF RIGHT TO PROPERTY

- 1 Originally, the right to Property was one of the seven Fundamental Rights under Part III of the Constitution.



- 2 It was dealt by Article 19 (1) (f) and Article 31. Article 19 (1) (f) guaranteed to every citizen the right to acquire, hold and dispose of property.
- 3 Article 31, on the other hand, guaranteed to every person, whether citizen or non-citizen, right against deprivation of his property. It provided that no person shall be deprived of his property except by authority of law.

PRESENT POSITION OF RIGHT TO PROPERTY



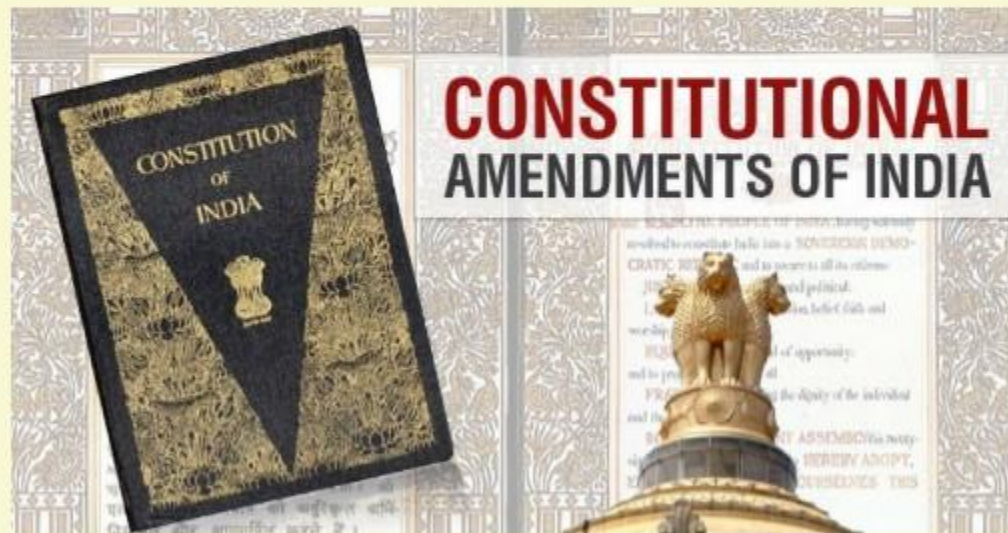
4 It empowered the State to acquire or requisition the property of a person on two conditions:

- a) It should be for **public purposes** and
- b) It should provide for payment of **compensation** (amount) to the owner.

5 Since the commencement of the Constitution, the Fundamental Right to Property has been the most controversial.

6 It has caused confrontations between the Supreme Court and the Parliament.

PRESENT POSITION OF RIGHT TO PROPERTY

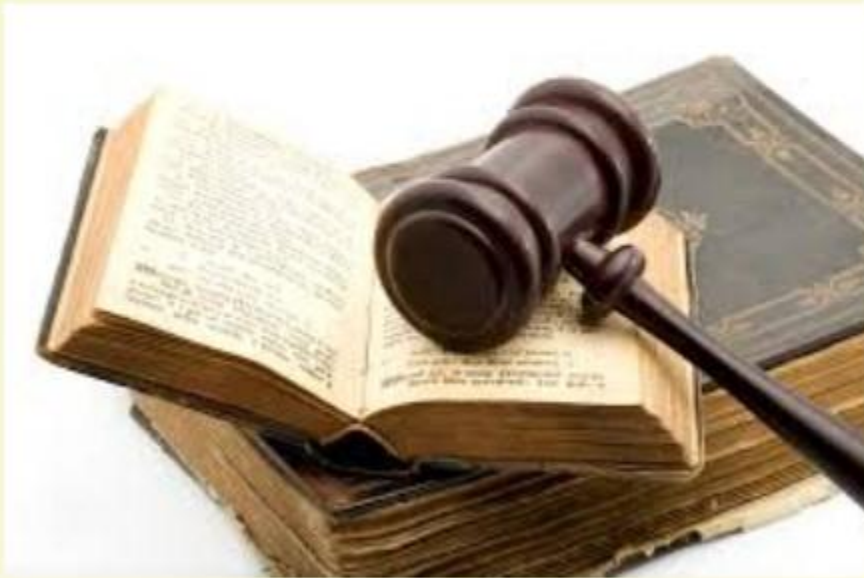


7 It has led to a number of Constitutional Amendments, that is, 1st, 4th, 7th, 25th, 39th, 49th, 42nd Amendments.

8 Through these amendments, Articles 31 A, 31 B and 31 C have been added and modified from time to time to nullify the effect of Supreme Court judgments and to protect certain laws from being challenged on the grounds of contravention of Fundamental Rights.

PRESENT POSITION OF RIGHT TO PROPERTY

- 9** Most of the litigation centered around the obligation if the State has to pay compensation for acquisition of private property.



- 10** Therefore, the 44th Amendment Act of 1978 abolished the Right to Property as a Fundamental Right by repealing Article 19(1)(f) and Article 31 from Part III.

- 11** Instead, the Act inserted a new Article 300A in Part XII under the heading “right to Property”.

- 12** It provides that no person shall be deprived of his property except by authority of law. Thus, the Right to Property still remains a legal right or a Constitutional Right, though no longer a Fundamental Right. It is not part of the basic structure of the Constitution.

PRESENT POSITION OF RIGHT TO PROPERTY



13 Though the Fundamental Right to Property under Part III has been abolished, the Part III still carries two provisions, which provide for the guaranteed Right to Compensation in case of acquisition of the private property by the State.

14 These two cases where compensation has to be paid are:

- a) When the State acquires the property of a minority educational institution (Article 30) and
- b) When the State acquires the land held by a person under his personal cultivation (Article 31 A).

PRESENT POSITION OF RIGHT TO PROPERTY



15 The first provision was added by the 44th Amendment Act (1978), while the second provision added by the 17th Amendment Act (1964).

16 Further, Articles 31A, 31 B and 31C have been retained as exceptions to the Fundamental Rights.

EXCEPTIONS TO FUNDAMENTAL RIGHTS SAVING OF LAWS PROVIDING FOR ACQUISITION OF ESTATES ETC

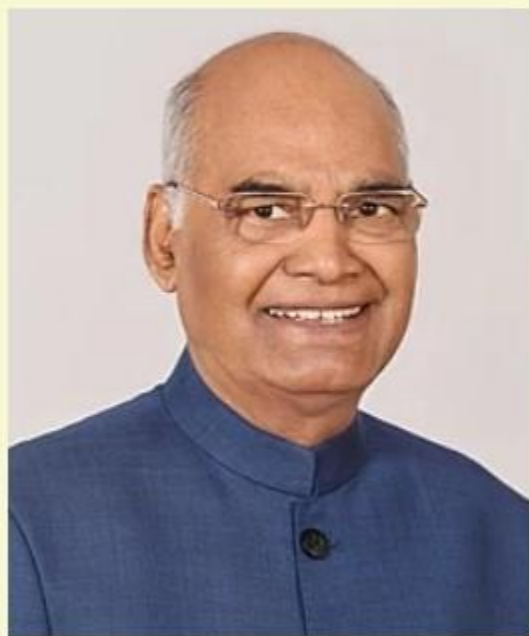
1 Article 31A saves five categories of laws from being challenged and invalidated on the ground of contravention of the Fundamental Rights conferred by Article 14 (Equality before law and equal protection of laws) and Article 19 (Protection of six rights in respect of speech, assembly, movement etc.).

2 They are related to agricultural land reforms, industry and commerce and include the following:

- a) Acquisition of estates and related rights by the State;
- b) Taking over the management of properties by the State.
- c) Amalgamation of corporations
- d) Extinguishment or modifications of rights of directors or shareholders of corporations and
- e) Extinguishment or modification of mining leases.

EXCEPTIONS TO FUNDAMENTAL RIGHTS

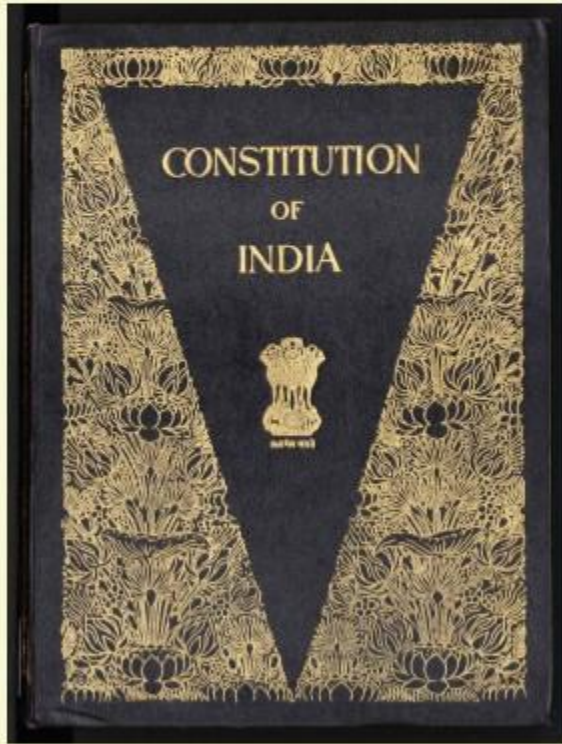
SAVING OF LAWS PROVIDING FOR
ACQUISITION OF ESTATES ETC



3 Article 31 A does not immunize a State law from judicial review unless it has reserved for the President's consideration and has received his assent.

4 This Article also provides for the payment of compensation at market value when the State acquires the land held by a person under his personal cultivation and the land is within the statutory ceiling limit.

EXCEPTIONS TO FUNDAMENTAL RIGHTS VALIDATION OF CERTAIN ACTS AND REGULATIONS



Article 31B provides a degree of immunity to certain laws

1 Article 31B saves the Acts and Regulations included in the Ninth Schedule from being challenged and invalidated on the ground of contravention of any of the Fundamental Rights. Thus, the scope of article 31B is wider than Article 31A.

2 Article 31B immunizes any law included in the Ninth Schedule from all the fundamental Rights whether or not the law falls under any of the five categories specified in Article 31A.

EXCEPTIONS TO FUNDAMENTAL RIGHTS VALIDATION OF CERTAIN ACTS AND REGULATIONS

3 However, in a significant judgment delivered in *I.R.Coelho case (2007)* the Supreme court ruled that there could not be any blanket immunity from judicial review of laws included in the Ninth Schedule.



4 The Court held that judicial review is a “basic feature” of the Constitution and it could not be taken away by putting a law under the Ninth Schedule.

5 It said that the laws placed under the Ninth Schedule after April 24, 1973 are open to challenge in court if they violated Fundamental Rights guaranteed under Articles 14, 15, 19 and 21 or the “Basic Structure” of the Constitution.

EXCEPTIONS TO FUNDAMENTAL RIGHTS VALIDATION OF CERTAIN ACTS AND REGULATIONS

6 It was on April 24, 1973, that the Supreme Court first propounded the doctrine of “Basic Structure” or “Basic Features” of the Constitution in its landmark verdict in the Kesavananda Bharati Case.



7 Originally (in 1951), the Ninth Schedule contained only 13 Acts and Regulations but at present (in 2016) their number is 282.

8 Of these, the acts and regulations of the State legislature deal with land reforms and abolition of the Zamindari System and that of the Parliament deal with other matters.

WHAT IS JUDICIAL REVIEW?

- 1 Judicial review is the doctrine in democratic theory **under which certain laws is subject to invalidation by the judiciary**



- 2 The provision of judicial review has been adopted in the Indian constitution from the constitution of the United States of America.
- 3 In the Indian constitution, Judicial Review is dealt under Article 13.
- 4 Judicial Review implies that the Constitution is the supreme power of the nation and all laws are under its supremacy.
- 5 Its is provided in the constitution to **prevent hasty and unconstitutional legislation passed by the parliament.**

SOME BASIC IDEAS ABOUT NINTH SCHEDULE

- 1 The Ninth Schedule was added to the Constitution by the First Amendment in 1951 along with Article 31-B with a view to provide a “protective umbrella” to land reforms laws to save them from being challenged in courts on the ground of violation of fundamental rights.
- 2 According to Article 13(2) of the Constitution, the state shall not frame any law inconsistent with the fundamental rights and any law made in contravention of fundamental rights shall be void to the extent of the contravention.

IMPORTANCE OF ARTICLE 31-B

Article 31-B saves conflict of laws with fundamental rights by giving validation based on “fictional immunity” that laws enacted under it and placed in the Ninth Schedule are immune to challenge in a court of law even if such a law violated fundamental rights!

COELHO CASE RELATED TO NINTH SCHEDULE



- 1** In IR Coelho versus State of Tamil Nadu, various laws placed in the Ninth Schedule were challenged on the ground that any law violating fundamental rights should be struck down as “unconstitutional” and that the court’s power of judicial review cannot be taken away.
- 2** A nine-judge constitution bench delivered its verdict on the issue in January 2007.

JUDGMENT IN COELHO CASE



- 1 The SC upheld the validity of Article 31-B and Parliament's power to place a particular law in the Ninth Schedule.
- 2 But it said laws placed in the Ninth Schedule **are open to judicial scrutiny and that such laws do not enjoy a blanket protection.**
- 3 Laws placed in the Ninth Schedule after the Keshwanand Bharti Judgment on April 24, 1973, when it propounded the “basic structure” doctrine, were open to challenge.

JUDGMENT IN COELHO CASE



4

- It laid down dual test to examine the validity of a law placed in the Ninth Schedule.
- Whether it violates any fundamental right and if yes whether the violation also damages or destroys the basic structure.
- If the answer to both the questions is in the affirmative, then only a law placed in the Ninth Schedule can be declared unconstitutional.

JUDGMENT IN COELHO CASE

- 5 The supremacy of the Constitution mandates all constitutional bodies to comply with the provisions of the Constitution.
- 6 It also mandates a mechanism for testing the validity of legislative acts through an independent organ, viz. the judiciary.
- 7 The Bench held that all such laws included in the Ninth Schedule after April 24, 1973 (date of verdict of Keshwanand Bharati Case) **would be tested individually on the touchstone of violation of fundamental rights or the basic structure doctrine.**
- 8 If the laws were found to violate the fundamental rights, abridge or abrogate any of the rights or protection granted to the people, it would be set aside as unconstitutional.

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